

21STCV10774 21STCV10774

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-17

Motion: DEFENDANT'S MOTION FOR PARTIAL NEW TRIAL [CRS No. 050795636209] [TENTATIVE] ORDER RE: DEFENDANT'S MOTION TO VACATE THE JUDGMENT AND ENTER A DIFFERENT JUDGMENT [CRS No. 050795636209]

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Case Number: 21STCV10774 Hearing Date: September 17, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

DANIEL NISHIYAMA, An Individual

And Sole Practitioner,

Plaintiff,

vs.

MELANIE MIDDIEEN, Successor

Trustee of the MIDDIEEN-RADER FAMILY TRUST; MATT RADER, Decedent; and Does 1 through 30, inclusive.

Defendants.

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CASE NO: 21STCV10774

[TENTATIVE] ORDER RE:

DEFENDANT'S MOTION FOR PARTIAL NEW TRIAL [CRS No. 050795636209]

[TENTATIVE] ORDER RE: DEFENDANT'S

MOTION TO VACATE THE JUDGMENT AND ENTER A DIFFERENT JUDGMENT [CRS No.
050795636209]

Dept. 731

September 17, 2026

8:30 a.m.

Matter No. 10

Moving Party: Defendant, Melanie Middien, as Successor Trustee of
the Middien-Rader Family
Trust

Opposing Party: Plaintiff, Daniel Nishiyama

Notice: OK

Background Facts

Pleadings

Plaintiff Daniel Nishiyama

("Plaintiff"), an individual and sole practitioner, brought this action pursuant to a March 19, 2021, Complaint suing Defendants Melanie Middien, as Successor Trustee of the Middien-Rader Family Trust ("Defendant"), the decedent Matt Rader (the "Decedent"), and Does 1-30, alleging causes of action for Breach of Contract, Common Counts, Enforcement of Lien, and Adjudication of Creditor's Claim.

The claims arose from allegations that Plaintiff represented the Decedent in a dissolution proceeding beginning in 2017, performed extensive legal work, and billed over \$166,000 in fees that the Decedent failed to pay, and that the Decedent executed multiple Deeds of Trust and Family Law Attorney Real Property Liens ("FLARPLs") against his community-property interests in three parcels—Peach Street, Columbia Avenue, and Highbury Avenue—to secure fee obligations, only for Defendant (as Successor Trustee of the Middien-Rader Family Trust) to now reject Plaintiff's creditor's claim after the Decedent's death and refuse to permit enforcement of the liens. Plaintiff prayed for foreclosure of the liens, recovery of the unpaid fees, and adjudication of his creditor's claim against trust property.

b. Trial,
Judgment

This action went to bench trial on July 24, 2026, on which date the Court found in favor of Plaintiff, with Plaintiff to provide a proposed judgment by July 30, 2026.

Plaintiff filed the [Proposed] Judgment

on July 29, 2026, and the Court subsequently entered Judgment on August 5, 2026. The only modification made by the Court to the award was the interlineation of the monetary award related to each cause of action at trial. The Clerk of the Court served Notice of Judgment on the parties that same day.

c. Motions

Before the Court

Now before the Court are Defendant

Melanie Middien, as Successor Trustee of the Middien-Rader Family Trust's (1) motion for partial new trial and (2) motion to vacate the judgment and enter new judgment. The motions are opposed by Plaintiff, who filed cursory oppositions to the motions.

The motions previously came before the Court on September 3, 2026, on which date the Court continued the hearing thereon to September 17, 2026.

Motion for New Trial

Procedural Considerations

i. Timeliness

Paraphrased, under Code of Civil

Procedure section 659, subdivision (a), a party who intends to move for a new trial must file and serve a notice of intention that identifies the grounds for the motion and states whether it will be based on affidavits, the court's minutes, or both. This notice must be filed either after the decision but before entry of judgment, or—if judgment has already been entered—within the earliest of: (1) 15 days after entry of judgment for an unrepresented party under section 664.5; or (2) 180 days after entry of judgment. (Ibid.)

After filing the notice, the moving party must serve and file a supporting memorandum within 10 days, and any opposing party has 10 days thereafter to file a reply. (Cal. Rules of Court, rule 3.1600(a); see also Code Civ. Proc., § 659a.) If the moving party fails to timely file its memorandum, the court may deny the motion without a hearing on the merits. (Cal. Rules of Court, rule 3.1600(b).)

Here, on August 12, 2026, seven days after notice of entry of judgment, Defendant Melanie Middien as Trustee filed a notice of intent to move for a partial new trial, specifically as to the third cause of action, filing supporting papers that same day.

ii. 75-Day
Rule

Paraphrased, under Code of Civil Procedure section 660(c), the court has a strict and limited period in which it may rule on a motion for a new trial, ending 75 days after the clerk mails notice of entry of judgment under section 664.5, or 75 days after any party serves the moving party with written notice of entry of judgment—whichever happens first.

Here, the Clerk noticed entry of judgment on August 5, 2026, 75 days from which is Monday, October 19, 2026. The Court is thus empowered to hear this motion on September 3, 2026.

b. Legal
Standard

An aggrieved party may move for new trial may under seven grounds prescribed by Code of Civil Procedure 657. A party seeking reversal of an adverse summary judgment ruling may also make a motion for new trial on the grounds that there are triable issues of material fact or that there is newly discovered evidence favoring reversal of the summary judgment ruling. (See *Doe v. United Air Lines, Inc.* (2008) 160 Cal.App.4th 1500, 1504-1505.)

The seven grounds are:

(1) Irregularity in the proceedings of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial.

(2) Misconduct of the jury; and whenever any one or more of the jurors have been induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may

be proved by the affidavit of any one of the jurors.

(3) Accident or surprise, which ordinary prudence could not have guarded against.

(4) Newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial.

(5) Excessive or inadequate damages.

(6) Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.

(7) Error in law, occurring at the trial and excepted to by the party making the application.

(Code Civ. Proc., § 657, subds.

(1)-(7).)

To grant a new trial, the Court must determine that there exists in this action an insufficiency of evidence at trial to justify the verdict because, after weighing the evidence, the court is not convinced from the entire record, including reasonable inferences, that the judge or jury clearly should have reached a different verdict or decision. (See Code Civ. Proc., § 657; *Lauren H v. Kannappan* (2002) 96 Cal.App.4th 834, 839; see *Dominguez v. Pantalone* (1989) 212 Cal.App.3d 201, 216 [A judge may not grant a new trial even where the judge would have found differently from the jury].) The standard is instead one requiring the conclusion "that the verdict was obviously and clearly wrong." (Cal. Judges Benchbook: Civil Proceedings-After Trial (2021 Supp.) Insufficient Evidence to Justify Verdict or Decision (CCP § 657(6)), § 2.56.)

In ruling on a motion for new trial that specifically relates to a non-jury trial, the court may, on such terms as may be just, change or add to the statement of decision, modify the judgment, in whole or in part, vacate the judgment, in whole or in part, and grant a new trial on all or part of the issues, or, in lieu of granting a new trial, may

vacate and set aside the statement of decision and judgment and reopen the case for further proceedings and the introduction of additional evidence with the same effect as if the case had been reopened after the submission thereof and before a decision had been filed or judgment rendered. (Code Civ. Proc., § 662.) Any judgment thereafter entered shall be subject to the provisions of sections 657 and 659. (Ibid.)

“[T]he [denial] of a motion for a new trial rests so completely within the discretion of the trial court that an appellate court will not interfere with his action unless” there is an “affirmative showing of a gross, manifest or unmistakable abuse of discretion.” [Citation.]” (Dunford v. General Water Heater Corp. (1957) 150 Cal.App.2d 260, 264.) “The only relevant limitation on this discretion is that the trial court must state its reasons for granting the new trial, and there must be substantial evidence in the record to support those reasons. [Citation.]” (Lane v. Hughes Aircraft Co. (2000) 22 Cal.4th 405, 412.)

Discussion

After review, the Court finds merit to Plaintiff’s motion but, pursuant to Code of Civil Procedure section 662, the Court limits relief to vacatur of the August 5, 2026, judgment, with the parties to meet and confer on a proposed amended judgment.

i. Failure

to Establish Compliance with Rule 1.8.1 as Basis for New Trial on Third Cause of Action

The third cause of action in the Complaint sought enforcement of liens secured by Plaintiff on October 27, 2020, as against interests held by the Decedent pursuant to Family Code section 2033. (See Complaint, ¶¶ 15, 20-24, Exs. E-G.) Subdivision (e) of section 2033 provides that “[a]n attorney for whom a family law attorney’s real property lien is obtained shall comply with Rule 3-300 of the Rules of Professional Conduct of the State Bar of California.” In turn, former rule 3-300, now rule 1.8.1. of the Rules of Professional Conduct mandates that a lawyer shall not enter into a business transaction with a client, or knowingly acquire an ownership, possessory, security or other pecuniary interest adverse to a client, unless the terms and the lawyer’s role are fully disclosed in writing and understandable to the client, the client has independent counsel or a

written opportunity to seek it, and the client then gives informed written consent. (Cal. Rules of Prof. Conduct, rule 1.8.1.) Relevant here, an attorney's charging lien is a "security interest" in the proceeds of the litigation and is therefore adverse to the interests of a client. (Fletcher v. Davis (2004) 33 Cal.4th 61, 67.) Failure to comply with rule 1.8.1 (formerly rule 3-300) is a proper basis for a court to decline to enforce a charging lien. (See, e.g., id. at pp. 71-72.) In such circumstances, while the attorney cannot enforce the lien against the judgment, the attorney may still enforce a valid, severed (as applicable) contingent fee agreement to recover their contractually agreed-upon fees. (See, e.g., Shopoff & Cavallo LLP v. Hyon (2008) 167 Cal.App.4th 1489, 1524-1525.)

Here, the record shows that at trial, over objections by Plaintiff (Motion, Notice of Lodging, Attach., 121:11-26), the Court accepted the totality of the circumstances regarding the Decedent's knowledge of how charging liens operated as providing support for enforcement of the lien pursuant to Family Code section 2033. (Ibid. at 123:16-125:18.) However, under the above authorities, compliance with Rules of Professional Conduct, rule 1.8.1 is a mandatory prerequisite to enforcement of a charging lien under Family Code section 2033. (See, e.g., BGJ Assocs. V. Wilson (2003) 113 Cal.App.4th 1217, 1226-1227 [tracking steps of former rule 3-300, current rule 1.8.1, and noting that the steps are sequential and not offered in the alternative, where the "rule clearly contemplates a situation in which a client does consult with counsel, then consents in writing to the terms of the agreement"].)

Critically, as pointed out in Defendant's reply (Reply, 3:8-9), Plaintiff's opposition admits that in this proceeding, Plaintiff failed to comply with rule 1.8.1. (Opposition, 6:4-7 ["Plaintiff's only error in respect to Rule 1.8.1 compliance was his failure to include in a letter to Rader that Rader should seek the advice of an independent lawyer of his choice concerning the proposed FLARPLs"].)

Under these circumstances, there is clear non-compliance with rule 1.8.1, and the charging lien was not enforceable as a matter of law. Consequently, there is merit to Plaintiff's motion.

However, rather than granting new trial, the Court VACATES the August 5, 2026, judgment as described below.

ii. Other

Bases for Relief

As Defendant's motion solely sought a new trial or other relief in favor of Plaintiff as to the Complaint's third cause of action, the Court need not consider the other bases for relief raised by Plaintiff.

d. Conclusion

Defendant Melanie Middien, as Successor Trustee of the Middien-Rader Family Trust's motion for partial new trial is GRANTED.

However, rather than granting new trial, pursuant to Code of Civil Procedure section 662, the Court VACATES the August 5, 2026, judgment, with the parties to file a proposed judgment as set forth below.

The Court SETS a non-appearance Order to Show Cause re Amended Judgment for 8:30 AM on Tuesday, September 29, 2026.

The parties SHALL file a joint proposed judgment addressing the outcome of this motion—and moreover considering the outcome of the motion below—and file the same with the Court no later than five court days prior to the Order to Show Cause hearing. If the parties cannot agree to a proposed judgment, they SHALL file separate proposed judgments along with a declaration from counsel explaining the inability to reach agreement on a proposed judgment.

Motion to Set

Aside/Vacate Judgment

Procedural

Requirements

i. Timeliness

Paraphrased, under Code of Civil

Procedure section 663a, subdivision (a), a party who intends to move to set aside and vacate a judgment under section 663 must file and serve a notice of intention that specifies the legal grounds and factual inconsistencies with the decision or special verdict. This notice must be filed either after the decision but before entry of judgment, or—if entry has occurred—within the earliest of: (1) 15 days after the clerk mails the notice of entry under section 664.5, (2) 15 days after receiving written notice of entry from any party, or (3) 180 days after entry of judgment. (Ibid.)

Here, on August 11, 2026, six days after notice of entry of judgment, Defendant Melanie Middien as Trustee filed a notice of intent to move for an order vacating the August 5, 2026, judgment, filing supporting papers that same day.

ii. 75-Day
Rule

Paraphrased, under Code of Civil Procedure section 663a, subdivision (b), the court's authority to rule on a motion to set aside and vacate a judgment is strictly time-limited, expiring 75 days after the clerk mails notice of entry of judgment under section 664.5, or 75 days after any party serves the moving party with written notice of entry—whichever occurs first. (Ibid.)

Here, the Clerk noticed entry of judgment on August 5, 2026, 75 days from which is Monday, October 19, 2026. The Court is thus empowered to hear this motion on September 3, 2026.

b. Legal
Standard

A judgment or decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of two reasons, materially affecting the substantial rights of the party and entitling the party to a different judgment: (1) an incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case when the judgment is set aside, the statement of decision shall be amended and corrected; and (2) a judgment or decree not consistent with or not supported by

the special verdict.” (Code Civ. Proc., § 663.)

A motion pursuant to section 663

may only be brought “when the trial court draws an incorrect legal conclusion or renders an erroneous judgment upon the facts as found by the court or as found by the jury in a special verdict,” such that, for example, a judgment that is consistent with a special verdict cannot be attacked pursuant to section 663 and must instead be challenged via a motion for new trial pursuant to section 657. (*Acosta v. Los Angeles Unified School Dist.* (1995) 31 Cal.App.4th 471, 479, fn. 7, citations omitted; see *Garibotti v. Hinkle* (2015) 243 Cal.App.4th 470, 477 [The motion “may only be brought when the ‘trial judge draws an incorrect legal conclusion or renders an erroneous judgment upon the facts found by it to exist,’” “e.g., [when] the evidence is insufficient to support the findings or verdict” (citations omitted)]; *Hassell v. Bird* (2016) 247 Cal.App.4th 1336, 1350, reversed on other—section 230 immunity—grounds in *Hassell v. Bird* (2018) 5 Cal.5th 522, 548 [“[R]elief is available under section 663 only where a different judgment is compelled by the facts found by a judge or jury” (citations omitted)].)

As a result, a motion brought under

section 663 must be based on uncontroverted evidence. (*Simac Design, Inc. v. Alciati* (1979) 92 Cal.App.3d 146, 153; see *Shapiro v. Prudential Property & Casualty Co.* (1997) 52 Cal.App.4th 722, 728-30 [trial court did not err in refusing to correct an ambiguous verdict under section 663]; see also *Plaza Hollister Ltd. Partnership v. County of San Benito* (1999) 72 Cal.App.4th 1, 14 [A motion under section 663 is not applicable to stipulated judgments because “[a] stipulated judgment does not rest upon facts established by evidence” such that “it is impossible for a court to say that the judgment is not consistent with or not supported by the facts and it is impossible to substitute the correct judgment which is consistent with and supported by the facts”].)

“In ruling on a section 663 motion,

the court cannot in any way change any finding of fact,” nor can the motion “challenge to the sufficiency of the evidence to support the judgment” or “be used to secure additional findings that were not made before judgment was entered.” (*Hassell v. Bird*, *supra*, 247 Cal.App.4th at p. 1350, citations omitted; *Knapp v. City of Newport Beach* (1960) 186 Cal.App.2d 669, 682 [The Court is not authorized to make supplemental findings under Code of Civil Procedure section 663, and any such findings are void].)

“[O]ral comments of the trial judge do not form a part of the final judgment and cannot be used to impeach the finding and judgment.” (In re Swanson's Estate (1959) 171 Cal.App.2d 437, 443.)

Discussion

i. Bases for Relief Nos. 2, 3, 6, and 9

The Court initially notes that relief related to bases for relief numbers 2, 3, 6, and 9 is MOOTED by the Court's order in relation to the motion for new trial.

This is because these bases for relief center around the Complaint's third cause of action, in relation to which the Court now finds in favor of Plaintiff, rendering relief here moot.

ii. Basis for Relief No. 1

The Court finds a basis for vacatur of the August 5, 2026, judgment to clarify that the damages at issue for causes of action 1, 2, and 4 reflect a single recovery for \$100,000.00.

An injured person is entitled to only one satisfaction of judgment for a single harm, and full payment of a judgment by one tortfeasor discharges all others who may be liable for the same injury. (Tikosky v. Yehuda (2018) 19 Cal.App.5th 1224, 1231.) Under California law, where the causes of action arise from the same primary right and injury, the judgment represents a single, undivided amount, such that the per-count figures are alternative or overlapping components of one recovery, not sums to be added. (See Tavaglione v. Billings (1993) 4 Cal.5th 1150, 1159.) California courts have reversed judgments that contain ambiguity as to whether separate awards are meant to be cumulative or a single undivided liability. (See, e.g., West v. Duncan (1962) 205 Cal.App.2d 140, 143-144 [reversing and remanding for new trial based on judgment's ambiguity as to allocation of liability between two defendants, which was required by statute].)

iii. Basis

for Relief No. 4

The Court also finds a basis for vacatur of the August 5, 2026, judgment based on naming of Decedent, Matthew Rader, as one of the defendants against whom the \$100,000.00 award is rendered. (See, e.g., Aug. 5, 2026, Judgment, ¶¶ 1, 2, 5.)

Judgment cannot be rendered for or against a decedent, nor can it be rendered for or against a personal representative of a decedent's estate, until the representative has been made a party by substitution. (*Sacks v. FSR Brokerage, Inc.* (1992) 7 Cal.App.4th 950, 957.)

iv. Basis

for Relief No. 5

The Court next finds insufficient merit in Basis for Relief No. 5.

Defendant is correct in noting that a claim based on a contract entered into by a trustee in the trustee's representative capacity, on an obligation arising from ownership or control of trust property, or on a tort committed in the course of administration of the trust may be asserted against the trust by proceeding against the trustee in the trustee's representative capacity, whether or not the trustee is personally liable on the claim (Prob. Code, § 18004), and that a judgment on such a claim is enforced against trust property by proceeding against the trustee in her representative capacity. (*Portico Management Group, LLC v. Harrison* (2011) 202 Cal.App.4th 464, 473-474.)

However, the judgment is sufficiently clear in limiting liability to Melanie Middien as Successor Trustee of the Middien-Rader Family Trust, necessarily excluding Melanie Middien as an individual, and limiting itself to trust corpus.

v. Basis

for Relief No. 7

Plaintiff provides another nominal

basis for vacating the August 5, 2026, judgment based on the judgment's omission of findings by the Court during trial releasing two of the liens alleged in the pleadings. (See Complaint, ¶¶ 14 [Peach Street lien], 16 [Highbury and Columbia liens]; see also Motion, Notice of Lodging, 126:7-10 [liens to be released other than as to Columbia Avenue].)

Proposed amended judgment(s) to be prepared by the parties shall address this issue, as well as necessary execution instructions, e.g., re: execution of recordable instruments by Plaintiff.

vi. Basis
for Relief No. 8

Basis for relief number 8, challenging the judgment based on the listing of an incorrect zip code, addresses a clerical error more so than providing a basis for a motion pursuant to section 663, which the moving papers themselves recognize. Relief therefore cannot be granted as to Basis for Relief No. 8. The Court nevertheless permits any proposed amended judgment to respond to this deficiency.

d. Conclusion

Defendant Melanie Middien, as
Successor Trustee of the Middien-Rader Family Trust's motion to
vacate judgment is:

(1) GRANTED as relates to Bases for
Relief Nos. 1, 4, and 7.

(2) DENIED as relates to Bases for
Relief No. 5 and 8.

(3) MOOT as relates to Bases for
Relief Nos. 2, 3, 6, and 9.

The Court SETS a non-appearance
Order to Show Cause re Amended Judgment for 8:30 AM on Tuesday, September 29,
2026.

The parties SHALL file a joint proposed judgment addressing the outcome of this motion—and moreover considering the outcome of the motion for new trial above—and file the same with the Court no later than five court days prior to the Order to Show Cause hearing. If the parties cannot agree to a proposed judgment, they SHALL file separate proposed judgments along with a declaration from counsel explaining the inability to reach agreement on a proposed judgment.

Defendant Melanie Middien, as Successor Trustee of the Middien-Rader Family Trust, is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 17, 2026 _____

MARK C. KIM

Judge of the
Superior Court